

# STATE OF NEW YORK

11133--A

## IN ASSEMBLY

April 24, 2026

Introduced by M. of A. GANDOLFO -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 10 of the law of 1958, relating to incorporating the Islip Terrace Volunteer Exempt Firemen's Benevolent Association, and providing for its powers and duties, in relation to making technical amendments thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 1, 2 and 7 of chapter 10 of the laws of 1958,  
2 relating to incorporating the Islip Terrace Volunteer Exempt Firemen's  
3 Benevolent Association, and providing for its powers and duties, are  
4 amended to read as follows:

5 Section 1. Incorporation; membership. A membership corporation by the  
6 name of "Islip Terrace Volunteer Exempt [~~Firemen's~~] Firefighter's Benev-  
7 olent Association" is hereby created. It shall be composed of such  
8 persons eligible to membership therein as hereinafter provided as shall  
9 (a) notify the secretary of the Islip Terrace fire department in writing  
10 prior to the organization meeting of such corporation hereinafter  
11 provided for their desire to become members, or (b) shall attend such  
12 meeting or an adjournment thereof, and also such persons so eligible as  
13 may become members of such corporation pursuant to its by-laws.

14 § 2. Persons eligible to membership. All persons who are now, or have  
15 been, or who hereafter shall be volunteer members of the Islip Terrace  
16 fire district fire department, or of any fire corporation in such fire  
17 district, and all persons resident in such fire district or in territory  
18 provided with fire protection by contract with such fire district who  
19 are exempt volunteer [~~firemen~~] firefighters as defined by section two  
20 hundred of the general municipal law, shall be eligible to membership in  
21 the corporation hereby created; provided that any person who has been  
22 expelled or removed for cause from membership in any fire company or  
23 department shall not be eligible to membership in such corporation.  
24 Whenever a member who is not an exempt [~~fireman~~] firefighter as defined  
25 by section two hundred of the general municipal law shall move from such

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[~~-~~] is old law to be omitted.

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1 fire district or from territory provided with fire protection as afore-  
2 said or if the territory in which a member resides shall no longer be  
3 provided with such fire protection, [~~his~~] their membership in such  
4 corporation shall cease.

5 § 7. Precept for the payment of foreign fire insurance premium taxes.  
6 Such corporation shall collect and there shall be paid to it all taxes  
7 imposed by section [~~five hundred fifty three~~] nine thousand one hundred  
8 four of the insurance law for fire department use and benefit, upon  
9 premiums for insurance against loss or damage by fire covering property  
10 situated within the territory protected by the Islip Terrace fire  
11 department, located in the town of Islip, Suffolk county, New York, or  
12 within any duly organized territory in which the Islip Terrace fire  
13 department is or may be obligated to render fire protection. The officer  
14 of said corporation designated by its by-laws to collect and receive the  
15 aforesaid tax shall have all the powers and be subject to all the  
16 provisions of the insurance law, relating to treasurers of fire depart-  
17 ments. Such corporation shall also be entitled to receive a share of the  
18 tax imposed by section [~~five hundred fifty four~~] nine thousand one  
19 hundred five of the insurance law, based upon the business written in  
20 the territory with respect to which it is entitled to collect and  
21 receive the tax under section [~~five hundred fifty three~~] nine thousand  
22 one hundred four of the insurance law. Such taxes shall only be used  
23 [~~for the care and relief of disabled or indigent volunteer and exempt~~  
24 ~~volunteer firemen and their families~~] in furtherance of its purposes as  
25 set forth in section three of this act.

26 § 2. This act shall take effect immediately; provided, however, that  
27 the amendments to section 7 of chapter 10 of the laws of 1958 made by  
28 section one of this act shall apply to taxes due on premiums received on  
29 or after January 1, 2027.